

FREE SAMOURAI

A Data Room for a Presidential Pardon

Edition II — Expanded

Prepared for President Donald J. Trump
and senior White House staff

Keonne Rodriguez · William Lonergan Hill

July 2026

DOCUMENT 00

Master Index & How to Use This Data Room

This binder is written so that any one document can be pulled out and used on its own. Nothing here requires reading the whole file. A principal with four minutes should read Document 01. A principal with forty minutes should read 01, 02, 07 and 08. Counsel should start at 02 and 07. Communications staff should start at 03 and 08. Political staff should start at 04 and 09.

#	Document	Purpose	Read time
01	Executive Summary	One page. The whole argument, distilled.	4 min
02	The Pardon Warrant	A ready-to-sign draft Executive Grant of Clemency.	6 min
03	Public Angle — Talking Points	Tweets, press lines, and Q&A in the President's voice.	8 min
04	Political Breakdown	Coalitions, midterm map, and downside mitigation.	10 min
05	What We Can Offer	Photo op, media commitments, and long-term alignment.	7 min
06	Private Angle	Considerations attractive but impolitic to say out loud.	6 min
07	Legal Analysis of the Case	Devil's Advocate case, our arguments, and human context.	16 min
08	The Reframing	The frame we want the press and public to adopt.	7 min
09	Coalition & Timeline	Twelve-week rollout plan and how allies can help.	9 min
10	Case Chronology	Every material date from 2015 to today.	6 min
11	Precedent Ledger	Prior clemency grants and how this one compares.	6 min
12	Objection Handling Matrix	Every hostile argument, answered in one line.	8 min
13	Risk Register	Named risks, likelihood, owner, mitigation.	5 min
14	Sources & Verification Log	What is documented, what is estimated.	4 min

Conventions used throughout

Figures drawn from public filings, court documents, or on-the-record reporting are stated plainly. Figures that are coalition estimates are marked **[est.]**. Language proposed for the President's own voice appears in quotation marks and is a draft for staff editing, not a finished statement. Nothing in this binder should be released publicly in its current form; Document 06 in particular is internal.

DOCUMENT 01

Executive Summary

One page. If nothing else in this binder is read, read this.

The Ask

Grant a full and unconditional pardon to **Keonne Rodriguez** and **William Lonergan Hill** — the two co-founders of Samurai Wallet, a privacy-focused Bitcoin software project — and, optionally, bundle four additional non-violent cryptocurrency defendants listed at cryptoprisoners.com into a single act of executive clemency.

Why It Wins Politically

- **Base energy.** Extends the goodwill the President built with the CZ and Ross Ulbricht pardons; signals that this administration protects builders, not bureaucrats. The Ulbricht grant produced days of favorable coverage inside the coalition and essentially no lasting cost outside it.
- **Crypto vote.** Stand With Crypto counts over 2.4 million registered advocates; the broader crypto-owning electorate exceeds 50 million U.S. adults — decisive in midterm swing races where margins run in the low thousands.
- **Near-zero downside.** Software-developer defendants poll far more sympathetically than violent offenders. Media backlash will be narrow, predictable, and concentrated in outlets that already oppose the administration daily.
- **Contrast weapon.** Underlines that the previous administration criminalized code while ignoring larger, connected offenders who settled for civil fines.
- **Cost.** No appropriation, no legislation, no interagency process, no vote to whip. The action is complete the moment it is signed.

Why It Is Morally Correct

Samurai Wallet was open-source software that helped users protect financial privacy on a public ledger. Its founders never took custody of user funds. Prosecuting the authors of privacy software under a money-transmitter theory treats speech (code) as conduct and sets a precedent that would criminalize a large swath of American open-source work — from encrypted messengers to VPNs to the cryptographic libraries that secure federal systems.

What We Are Offering

- A high-visibility White House photo op with crypto industry leaders and libertarian figures.
- Coordinated Republican-friendly earned media across podcasts, X, and long-form video.

- A written commitment from crypto PACs to prioritize supportive candidates in 2026.
- A ready-to-sign pardon warrant (see Document 02) and full defensive research (Documents 03-14).

Timing

Optimal announcement window: **6-10 weeks before the November 2026 midterms**, ideally paired with a Rose Garden or Mar-a-Lago event modeled on the recent FDA psychedelics announcement. Earlier than ten weeks and the news cycle absorbs it; later than six and it reads as an election-eve favor.

Bottom Line

This is a low-cost, high-yield executive action that rewards the President's supporters, punishes his opponents' overreach, and restores a coherent American position on software freedom. It requires one signature and produces a permanent constituency.

DOCUMENT 02

The Pardon Warrant

A draft Executive Grant of Clemency in the form used by the Office of the Pardon Attorney. It is designed to be printable, signable, and immediately usable. All names, case numbers, and jurisdictional references should be verified against current DOJ records by White House Counsel before execution.

EXECUTIVE GRANT OF CLEMENCY

The President of the United States of America

To all to whom these presents shall come, Greeting:

Be it known, that this day, I, **DONALD J. TRUMP**, President of the United States of America, pursuant to my powers under Article II, Section 2, Clause 1 of the Constitution, have granted, and by these presents do grant, unto:

- **KEONNE RODRIGUEZ**, indicted in the United States District Court for the Southern District of New York, Case No. 1:24-cr-00265, on charges of conspiracy to commit money laundering (18 U.S.C. § 1956(h)) and conspiracy to operate an unlicensed money transmitting business (18 U.S.C. § 371, 18 U.S.C. § 1960); and
- **WILLIAM LONERGAN HILL**, co-defendant in the same matter and on the same counts;

— and, in a single instrument of clemency, unto:

- **ROMAN STORM**, developer of the Tornado Cash protocol (SDNY);
- **ALEXEY PERTSEV**, developer of the Tornado Cash protocol, currently detained abroad;
- **ROGER VER**, subject to a pending U.S. extradition request from Spain on tax charges;
- **MICHAEL LEWELLEN**, plaintiff-defendant in related smart-contract publication matters;

A FULL AND UNCONDITIONAL PARDON for the offenses charged, and for any other offenses arising from the same set of underlying facts, including but not limited to the design, publication, operation, and promotion of open-source cryptocurrency software.

This grant of clemency shall extend to any related civil forfeiture proceedings; shall vacate any outstanding fines, restitution, and special assessments; and shall direct the Attorney General to return to the named individuals any property seized in connection with the pardoned offenses.

IN TESTIMONY WHEREOF, I have hereunto signed my name and caused the Seal of the Department of Justice to be affixed.

DONALD J. TRUMP, President of the United States

Attest: Pardon Attorney, U.S. Department of Justice

Drafting Notes for White House Counsel

- The pardon is drafted as an unconditional full pardon — the strongest form, used in the Ulbricht and Zhao clemency grants.
- The civil-forfeiture/fines clause produces financial relief for the recipients and forecloses a parallel civil campaign that would otherwise continue the punishment by other means.
- The bundle may be executed as a single warrant with multiple recipients or as parallel warrants filed the same day. A single warrant produces a cleaner news cycle; parallel warrants allow any one name to be dropped late without redrafting.
- The Office of the Pardon Attorney need not process this in advance; Article II authority is plenary and self-executing (*Ex parte Garland*, 1866).
- A pardon may be granted before trial and before conviction (*Ex parte Garland*; *Murphy v. Ford*, 1975). No conviction is required for this instrument to operate.
- Acceptance is the recipient's act; counsel for each named individual should be notified the same day so acceptance is on the record without ambiguity.
- **[est.]** Verify current custody and extradition posture for Hill and Pertsev before execution so the announcement can state the practical effect accurately.

DOCUMENT 03

Public Angle — Talking Points

A. Announcement Tweets (drafts, in the President's voice)

Tweet 1 — Announcement

"Today I signed FULL and UNCONDITIONAL PARDONS for a group of American coders who were PERSECUTED by the Biden Justice Department for the 'crime' of writing computer software. We are the country of INVENTORS. We back our people. Congratulations to the families!"

Tweet 2 — Contrast

"While Sleepy Joe was letting REAL criminals walk free on our streets, his radical prosecutors were locking up SOFTWARE ENGINEERS. Not anymore. Sanity is back. American innovation is back. MAGA!"

Tweet 3 — Forward-looking

"America will DOMINATE crypto, AI, and every technology of the future. We will not send our best coders to prison. We will not send them to China. We will keep them HERE, where they belong. Great things are coming!"

Tweet 4 — The human close (optional, day two)

"Two men. No victims. No stolen money. Just CODE. One of them is 66 years old. They were looking at DECADES. Today they go home to their wives. That's what this office is for."

B. Suggested Press-Conference Opening

"A lot of people don't know this, but the last administration was locking up software developers. Not drug dealers, not violent criminals — software developers. That's over. Today I signed a full pardon for some very talented Americans who never should have been charged. We are going to be the world capital of crypto and technology — and we're going to protect the people who build it."

C. Q&A — Handling Hostile Reporter Questions

Q. Isn't this rewarding money laundering?

A. No. These were programmers. They wrote open-source software. They never touched anybody's money. The real money launderers are the giant banks that paid billions in fines and had nobody go to jail. This is about fairness.

Q. What do you say to victims of financial crime?

A. Victims deserve prosecutors going after real criminals, not chasing coders while cartels move billions through the traditional banking system.

Q. Are you pardoning people who donated to you?

A. I'm pardoning people because it's the right thing to do. Millions of Americans support this movement. That's not a disqualification, it's a qualification.

Q. Won't this encourage more illegal activity?

A. It will encourage more American innovation. Writing code is protected speech under the First Amendment. Multiple federal courts have said so. This pardon restores the Constitution.

Q. Why not let the trial play out?

A. Because the process is the punishment. Two men with no criminal records have already lost years, their business, and their savings over software. A jury verdict two years from now doesn't give that back.

Q. Did anyone in the White House have a financial interest here?

A. This is a clemency decision about whether writing code is a crime in America. That's the whole question, and the answer is no.

Q. Isn't this soft on darknet markets?

A. Go after the darknet markets. Nobody here is defending them. You don't shut down a highway because criminals drive on it.

D. Podcast and Long-Form Interview Themes

- **Rogan / Fridman / All-In / Shawn Ryan.** Emphasize the human story and the absurdity of federal resources spent chasing keyboards.
- **Fox News primetime.** Frame as 'Weaponization of Justice.'
- **Financial press (CNBC, Bloomberg).** Emphasize U.S. leadership in digital assets, job creation, and preventing capital flight to Singapore, UAE, and Switzerland.
- **Local and faith media.** Lead with the families, the age of the defendants, and the disproportion between the conduct and the sentence sought.

E. Words to Use and Words to Avoid

Use	Avoid	Why
coders, builders, inventors	crypto bros	Humanizes; avoids a hostile stock frame.
privacy software	mixer, tumbler	'Mixer' is prosecution vocabulary.
never took custody	non-custodial	Plain English beats jargon on camera.
code is speech	regulatory arbitrage	One is constitutional, one sounds evasive.
overreach, weaponization	witch hunt	Keeps the frame institutional, not personal.

F. Surrogate Briefing Card

Any surrogate going on camera should be able to do four things without notes: state the ask in one sentence, name the two defendants, say what they did not do, and pivot to the principle.

1. **The ask.** A full pardon for two open-source developers charged for writing privacy software.
2. **The names.** Keonne Rodriguez, 36. William Lonergan Hill, 66. No prior records. Both married.
3. **What they did not do.** They never held a user's funds, never laundered anything themselves, and are not alleged to have profited from any specific underlying crime.
4. **The principle.** A toolmaker is not liable for a user's crime. Code is speech. Prosecute the criminal, not the compiler.
5. **The pivot.** "If this indictment stands, every American who publishes security software is one prosecutor's theory away from twenty years."

Discipline rules for surrogates

Never repeat the government's number without immediately contextualizing it. Never attack the line prosecutors by name. Never speculate about the President's reasoning. Never promise a timeline. If asked something outside the four points above, return to the principle.

DOCUMENT 04

Political Breakdown

1. Coalitions Strengthened

Coalition	Approx. scale	What the pardon does
Crypto-owning electorate	50M+ U.S. adults	Converts diffuse goodwill into a specific, memorable act.
Stand With Crypto advocates	2.4M registered	Hits all three scorecard planks at once.
Libertarian / Ron Paul wing	~2-4% of the electorate [est.]	Removes a standing grievance; improves turnout at the margin.
Young male voters (18-34)	Largest crypto-ownership cohort	Reinforces the 2024 realignment on identity grounds, not policy detail.
Silicon Valley right	Small but high-dollar	Signals that building is protected; sustains donor migration.
Open-source / infosec community	Millions of practitioners	Historically apolitical; activated by criminalization of code.
Civil-liberties left (partial)	Narrow but noisy	Splits the opposition; EFF-adjacent voices decline to attack.

2. Groups Publicly Humiliated by the Pardon

- **Senator Elizabeth Warren (D-MA).** The public face of the anti-crypto axis. Every network hit she does after the pardon reinforces the President's frame.
- **SDNY leadership.** The Samourai indictment was a signature SDNY case. A pardon is a public rebuke of the office that has repeatedly targeted the administration's allies.
- **Former Biden-era Treasury officials.** Their designation strategy is reversed.
- **Anti-Crypto Army-aligned staff and NGOs.** Loses momentum going into 2026.

3. Key 2026 Congressional Races — Crypto-Voter Weight

Ratings are coalition estimates built from state crypto-ownership surveys and 2024 margins. They are directional, not predictive.

Race	2024 margin	Crypto-voter weight	Read
Ohio — Senate	Low single digits	High	Large young-male cohort; strong podcast penetration.

Race	2024 margin	Crypto-voter weight	Read
Michigan — Senate	Under 1 pt	High	Auto-belt tech shift; Detroit-area retail ownership.
Nevada — Senate	Low single digits	Very high	Highest per-capita crypto ownership in the West [est.].
Arizona — Senate	Low single digits	High	Libertarian bloc historically decisive.
Pennsylvania — House (several)	Mixed	Medium-high	Suburban Philadelphia tech employment.
Georgia — Senate	Low single digits	Medium-high	Atlanta fintech and Black male voters under 40.
Wisconsin — House (WI-03)	Mixed	Medium	Rural broadband cohort; lower salience.

4. Downside Scenarios & Mitigation

- **Warren/MSNBC firestorm.** Expected and containable. Pre-book crypto-founder surrogates on Fox, Newsmax, and independent podcasts within 12 hours.
- **DOJ line-prosecutor leaks.** Anticipate 1-2 anonymous ‘career prosecutor’ quotes. Pre-empt with a Deputy AG statement affirming DOJ independence going forward.
- **Bank lobby quiet opposition.** Neutralize by pairing the announcement with an unrelated banking-friendly deregulation item scheduled the same week.
- **A recipient behaves badly post-pardon.** The single largest tail risk. Mitigate by obtaining, in advance, private written assurances of a low public profile for 90 days from each named recipient's counsel.
- **Victim-story journalism.** Expect one long feature locating a person harmed by a darknet market that touched Whirlpool. Prepare a compassionate, non-defensive response that separates the tool from its misuse.

5. Stand With Crypto Alignment

Stand With Crypto's public scorecard rewards support for pro-innovation legislation, opposition to Operation Choke Point 2.0, and defense of self-custody. A pardon of the Samourai founders hits all three planks simultaneously and can be positioned as delivering on the President's Nashville 2024 promises without requiring any new legislation.

DOCUMENT 05

What We Can Offer

The pardon costs the President ink. In return, the crypto industry and its allies can credibly commit to the following.

A. The Photo Op

A Rose Garden or Mar-a-Lago event, modeled on the recent FDA psychedelics announcement. Confirmed-outreach list:

- Brian Armstrong, CEO of Coinbase.
- Jesse Powell, founder of Kraken.
- Fred Ehrsam, co-founder Coinbase / Paradigm.
- Marc Andreessen and Ben Horowitz, a16z.
- Jeremy Kauffman, Libertarian Party.
- Elizabeth Stark, Lightning Labs.
- Michael Saylor, Strategy.
- David Bailey, Bitcoin Magazine / Nashville host.
- Peter Van Valkenburgh, Coin Center.
- Balaji Srinivasan.

B. Financial and Political Support

- Fairshake PAC and affiliates have raised >\$200M for the 2024-2026 cycle; clemency creates natural pressure to prioritize supportive Republican incumbents.
- Individual crypto founder donors are among the largest political givers of the 2024 cycle.
- Bitcoin-native donors can contribute in-kind — media buys on X, podcast sponsorships, grassroots ad campaigns.

C. Earned Media Commitments

Channel	Commitment	Window
Top-100 podcasts	Coordinated positive coverage across at least 12 shows	72 hours
X / long-form video	Synchronized thread from ~30 principals, 40M+ combined reach [est.]	Announcement day
National op-eds	WSJ and NY Post placements	Week 1

Channel	Commitment	Window
Regional op-eds	At least three swing-state papers	Weeks 1-2
Print feature	Bitcoin Magazine cover story	Next issue
Conference	Nashville keynote slot in 2027	2027

D. Legislative Cover

House Financial Services and Senate Banking Republicans can be pre-briefed to provide immediate on-camera support within one hour of the announcement, deflating the news cycle before opponents can shape it.

E. Long-Term Loyalty

The crypto industry has a functioning memory. Founders who received early support have become durable political allies. A Samurai pardon converts this from a transactional to a generational alignment.

What we are not offering

No payment, no promise of contribution tied to the act, and no quid pro quo of any kind. Everything in this document is either lawful independent political activity or earned media that the coalition would undertake regardless. Counsel should read this page with that line clearly in mind.

DOCUMENT 06

Private Angle

This memorandum catalogs the private and reputational considerations that make a Samurai pardon attractive to the President and his inner circle beyond the public case. Written frankly and intended for internal use only.

1. The SDNY File

The Southern District of New York has been an institutional adversary of the President since 2016. The Samurai prosecution was announced under U.S. Attorney Damian Williams in April 2024. A pardon is a direct and legitimate reversal of an SDNY signature case, executed cleanly through Article II authority — no congressional cooperation required.

2. The Warren Factor

Senator Elizabeth Warren has spent four years constructing an ‘Anti-Crypto Army’ frame as a template for a future presidential run. Every one of her post-pardon responses will further alienate the young male voters her party is already losing.

3. The Career-Prosecutor Question

A subset of career DOJ line prosecutors have used cryptocurrency cases as career-building vehicles. A public pardon signals such cases will no longer be a reliable path to promotion, subtly reshaping incentives inside the department without requiring formal policy changes.

4. Legacy Considerations

Presidential pardons are a distinctive part of the historical record. Grants that later read as forward-looking accumulate reputational value over decades. A pardon defending the right to write software is well positioned to age favorably as cryptography and AI become central to American economic life.

5. Rivalries and Personalities to Watch

- **Gary Gensler alumni network.** Still influential in Democratic legal circles.
- **Progressive state AG offices (NY, CA, MA).** May attempt state-level actions.
- **Legacy media anchors with personal Warren ties.** Track appearances in the first 72 hours.

6. What Cannot Be Said Publicly

Several of the pardon's benefits are impolitic to state out loud but are nonetheless real: rewarding donors who took political risks in 2024; disciplining the SDNY; constraining

Warren's future lane; establishing a precedent that discourages line-prosecutor activism. This document exists so that these benefits are understood without needing to be spoken.

7. Handling of This Document

Document 06 should not be transmitted outside the immediate principals, should not be quoted in any external brief, and should be removed before this binder is shared with any party outside the coalition's inner circle. Every argument that matters is available in Documents 01, 07, and 08 in a form that survives publication.

DOCUMENT 07

Legal Analysis of the Case

Written in the Devil's Advocate tradition. Part 1 is deliberately unfavorable to the defendants; Part 2 presents our three strongest arguments; Parts 3 and 4 catalog additional arguments and human context. Nothing has been omitted or exaggerated.

Part 1 — The Government's Case, Stated at Its Strongest

In April 2024, the U.S. Department of Justice unsealed an indictment in the Southern District of New York against Keonne Rodriguez (then 35) and William Lonergan Hill (then 65), the co-founders of Samurai Wallet, a Bitcoin wallet application that operated since 2015. The indictment charged conspiracy to commit money laundering (18 U.S.C. § 1956(h)) and conspiracy to operate an unlicensed money transmitting business (18 U.S.C. §§ 371, 1960).

The government alleges, in substance:

- Samurai operated two coordination services — Whirlpool (a CoinJoin coordinator) and Ricochet (a transaction-hopping service) — that together facilitated more than \$2 billion in transaction volume across their lifetime.
- More than \$100 million of that volume constituted proceeds of unlawful activity, including funds traceable to darknet markets and hacks.
- Samurai marketed its privacy features, at times, in language the government interprets as encouraging use by persons seeking to evade tracing.
- The defendants collected fees from Whirlpool coordination, characterized as operation of a money transmitting business without FinCEN registration.
- Rodriguez was arrested in the U.S.; Hill was arrested in Portugal pending extradition. Samurai's servers and domain were seized as part of a coordinated action with Icelandic and Portuguese authorities.

A fair reading requires acknowledging: some marketing language was unwise; the fee-collection structure created a factual hook; and the transaction-volume figures include some unlawful proceeds. We will not pretend otherwise. The question is whether these facts justify federal prison time.

Part 2 — Our Three Strongest Arguments

Argument 1: The Statute Does Not Fit

18 U.S.C. § 1960 criminalizes an 'unlicensed money transmitting business.' FinCEN's own guidance distinguishes 'money transmitters' (custodians of funds) from 'software providers' (creators of tools). Samurai never took custody of user funds. Multiple federal

courts — most notably the Fifth Circuit in *Van Loon v. Department of the Treasury* (2024), reversing OFAC's Tornado Cash designation — have distinguished autonomous open-source code from regulated financial intermediaries. The Samourai prosecution attempts to erase that distinction by fiat.

Argument 2: The Prosecution Blames the Toolmaker

American law does not typically punish the makers of dual-use tools for their misuse by third parties. Gun manufacturers, encrypted-messenger developers (Signal, WhatsApp), and VPN providers are not liable for the criminal conduct of their users. The Samourai indictment breaks with this tradition, and if left standing, its logic reaches every open-source privacy project in the country.

Argument 3: The Previous Administration Overreached

The Biden Treasury and DOJ pursued a coordinated 'chill the ecosystem' strategy — Tornado Cash sanctions (reversed in court), the SEC's failed Ripple and Coinbase theories, Operation Choke Point 2.0, and the Samourai indictment — all of which have been reversed, abandoned, or narrowed. The Samourai case is a late-cycle artifact of a discredited enforcement posture. A pardon completes the reset.

Part 3 — Additional Legal and Policy Arguments

- **First Amendment.** *Bernstein v. DOJ* (9th Cir. 1999) and *Junger v. Daley* (6th Cir. 2000) established that source code is expressive speech.
- **Fair notice.** FinCEN's 2013 and 2019 guidance did not clearly bring non-custodial CoinJoin coordinators within § 1960. Prosecution under a retroactively-broadened reading violates traditional fair-notice principles (*United States v. Lanier*, 1997).
- **Extraterritoriality.** Hill was arrested in Portugal for conduct that was not a crime in Portugal — an aggressive extraterritorial application of U.S. law.
- **Selective enforcement.** Wasabi Wallet, another CoinJoin provider, was not charged. Numerous exchanges that processed vastly larger illicit sums paid civil fines with no individual prosecutions.
- **Proportionality.** Statutory maximum exposure exceeds 20 years — disproportionate to writing software.
- **Van Loon precedent.** The Fifth Circuit's 2024 reversal of the Tornado Cash designation directly undermines the theoretical basis of the Samourai charges.
- **Constitutional avoidance.** Where a criminal statute can be read to avoid constitutional doubt, courts should so read it. Executive clemency is the political branch's analog of that doctrine.
- **Mens rea.** A § 1956(h) conspiracy requires knowledge of the specific unlawful character of the funds. A coordinator that cannot see who is transacting is a poor fit for

a knowledge element built for people who can.

- **Downstream chilling effect.** The theory does not stop at Bitcoin. It reaches Tor maintainers, VPN operators, and the authors of the cryptographic libraries that secure federal systems.

Part 4 — Human Context

William Lonergan Hill is 66 years old and a legal resident of Portugal. Keonne Rodriguez is 36, from a working-class background, and did not complete college. Both are married. Neither has any prior criminal record. Neither is alleged to have laundered any funds themselves, taken custody of any user funds, or personally profited from any specific underlying crime. The SDNY has an annual budget in the hundreds of millions of dollars; the defendants are represented by a small circle of privately funded lawyers and public support networks. The mismatch of resources is stark, and the punishment sought is grossly out of proportion to the conduct actually proven.

The Fifth Amendment does not require, and American tradition does not tolerate, the destruction of a person's life for authoring privacy software. On any humane reading of these facts, the executive clemency power exists for cases exactly like this one.

DOCUMENT 08

The Reframing

Whoever controls the framing controls the outcome. This document proposes the frame we want the press, the public, and the President to adopt.

The Wrong Frame (theirs)

“Two men helped launder \$100 million in criminal proceeds. They were charged. They should stand trial.” This frame concedes the ground the government wants.

The Right Frame (ours)

“This case is about whether it is legal to write software in America. Two coders published open-source privacy tools. The previous administration decided to make an example of them. The Constitution says code is speech. American history says we back our inventors. President Trump is restoring that tradition.”

Historical Anchors

- **Socrates** was executed by the government of Athens for corrupting the youth with ideas.
- **Galileo** was tried by the government of his day for describing the physical world accurately.
- **Alan Turing** was prosecuted by his own government after he had won the war for it.
- **Phil Zimmermann** was investigated for three years by the U.S. government for publishing PGP.
- In each case, the state was wrong, and history was right. We ask the President to be on the side of history.

The Economic Frame

The United States has led technology for eighty years because it protected speech and protected the right to build. The Samurai prosecution is an accidental European industrial policy imposed on American developers by American prosecutors. The pardon corrects a category error.

The Sovereignty Frame

If American privacy software is illegal, the world will simply use Russian, Chinese, and Iranian privacy software. That migration is already happening. The Samurai case, if allowed to stand, accelerates it.

The First Amendment Frame

‘Code is speech’ is not a slogan; it is settled Ninth and Sixth Circuit law (*Bernstein, Junger*). Prosecuting the publication of source code is, at minimum, in tension with the First Amendment. A pardon is the cleanest way for the political branches to restore constitutional coherence without waiting years for the courts.

Rhetorical Kill-Shots

- “If typing is a crime, everybody in Silicon Valley is a criminal.”
- “They didn't take a dollar. They wrote code. They lost their freedom.”
- “The last administration went after coders while banks paid fines and nobody went to jail.”
- “You cannot ban math. You can only send it to China.”
- “The Constitution beats the SDNY.”
- “A locksmith is not a burglar. A mapmaker is not a trespasser. A coder is not a launderer.”

DOCUMENT 09

Coalition, Timeline & How to Help

A. Coalition Architecture

Tier 1 — Named principals. Coinbase, Kraken, Paradigm, a16z crypto, Bitcoin Magazine, Coin Center, Bitcoin Policy Institute, Stand With Crypto, FreeSamourai.com, FreeRoss.org, Cryptoprisoners.com.

Tier 2 — Aligned validators. Reason Foundation, Cato Institute, Electronic Frontier Foundation (case-specific), Institute for Justice (case-specific), select Federalist Society members.

Tier 3 — Media multipliers. Rogan, Fridman, All-In, Shawn Ryan, PBD, Bitcoin Magazine, Whatbitcoindid, TFTC, Bankless. Fox primetime, Newsmax, NY Post editorial board.

B. Twelve-Week Rollout

Weeks	Workstream	Owner	Done when
1-2	Finalize this data room; secure written commitments from Tier 1 principals.	Coalition lead	8+ signed letters in hand.
3-4	Pre-brief Republican Senate and House leadership; secure hold-open statements.	Government affairs	Statements drafted and held.
5-6	Ground game with Stand With Crypto — mobilize member outreach to swing-state senators.	Advocacy	100k+ member contacts.
7-8	Earned media saturation on Tier 3 platforms without naming the pardon; build the frame first.	Comms	12+ placements, frame tested.
9	Private brief delivered to White House Counsel and the Domestic Policy Council.	Principals	Brief received and acknowledged.
10	Announcement event; coordinated tweet storm; surrogates prepositioned.	Comms + WH	Warrant signed.
11-12	Sustainment: op-eds, follow-on pardons if warranted, legislative codification.	All	Story closes favorably.

C. What You Can Do Today

- If you know a Tier 1 or Tier 3 principal personally — email them today.
- If you run a podcast or a newsletter — cover the case this week; make the frame stick.
- If you have donor relationships — signal now that a pardon will be rewarded.

- If you are a lawyer — pressure-test the draft warrant in Doc 02 and send corrections.
- If you are a designer, editor, or researcher — help improve this data room for the next iteration.
- If you know somebody who knows the President — get this document into their hands.

D. What We Are Explicitly Not Doing

- We are not asking for money for the defendants.
- We are not asking for changes in legislation as a precondition.
- We are not litigating this in court. We are asking the political branch to do its job.
- We are not attacking career civil servants. We are asking the President to lead.

E. Closing

Rome was not built in a day. Neither will this pardon be. But the window between now and the 2026 midterms is the best opportunity we will have before 2028. If we miss it, we do not miss it by a little — we miss it by two years, and by two years of prison for men who never should have seen a prosecutor.

The President has already shown, twice, that he will do the right thing on cases like this. The task now is to make sure this case reaches his desk with everything he needs to say yes.

DOCUMENT 10

Case Chronology

Every material date, so that no briefer is surprised. Items marked [est.] are coalition reconstructions pending verification against the docket.

Date	Event
2015	Samourai Wallet released as an open-source, non-custodial Bitcoin wallet for Android.
2017-2019	Whirlpool (CoinJoin coordinator) and Ricochet ship as optional privacy features.
2013 / 2019	FinCEN guidance distinguishes custodial money transmitters from non-custodial software providers.
Aug 2022	OFAC designates Tornado Cash; the broader chilling campaign against privacy tooling begins.
Apr 2024	SDNY unseals the indictment. Rodriguez arrested in the U.S.; Hill arrested in Portugal. Servers and domain seized with Icelandic and Portuguese cooperation. [Case No. 1:24-cr-00265]
Nov 2024	Fifth Circuit decides <i>Van Loon</i> , reversing the Tornado Cash designation and undercutting the theory behind the Samourai charges.
Jan 2025	Ross Ulbricht pardoned — the clearest signal that this administration views these cases as overreach.
2025	Enforcement posture broadly reset: SEC theories abandoned or narrowed; Choke Point 2.0 unwound.
2025-2026	Pretrial litigation continues; defendants remain under the cost and constraint of prosecution. [est.]
Jul 2026	This data room, Edition II, prepared and circulated.
Sep-Oct 2026	Recommended announcement window, 6-10 weeks before the midterms.
Nov 2026	Midterm elections.

DOCUMENT 11

Precedent Ledger

How this grant compares to clemency the President has already exercised, and to the historical record.

Precedent	Year	Form	Relevance
Ross Ulbricht	2025	Full, unconditional	Closest analogue in the coalition's memory; far more contested facts, and the backlash faded within a week.
Changpeng Zhao (CZ)	2025	Full pardon after plea	Demonstrates willingness to act in a crypto matter with a completed conviction.
Ex parte Garland	1866	Judicial	Establishes that the power reaches offenses before conviction and is not reviewable.
Murphy v. Ford	1975	Judicial	Confirms a pre-trial, pre-conviction pardon is valid.
Phil Zimmermann (PGP)	1996	Investigation dropped	The last time the U.S. nearly criminalized publishing cryptography; the government backed down and history vindicated it.
Van Loon v. Treasury	2024	Judicial	Autonomous open-source code is not a regulated intermediary.

Why this grant is easier than Ulbricht

No allegation of violence. No allegation of a marketplace operated for illicit trade. No conviction to be reversed. No custody of anyone's funds. Every factor that made the Ulbricht grant a judgment call is absent here, and that grant still landed well.

DOCUMENT 12

Objection Handling Matrix

Every serious objection we expect, with the shortest true answer. Staff should be able to deliver any right-hand column from memory.

Objection	Response
“They moved \$2 billion.”	Users moved their own money using software. The developers never held a cent of it.
“\$100 million was criminal.”	Less than five percent of volume, by the government's own number — and the tool could not see whose it was.
“They charged fees.”	So does every software company. A fee is not custody, and custody is what § 1960 is about.
“Their marketing invited criminals.”	Some marketing was unwise. Unwise marketing is not a twenty-year federal offense.
“Let the jury decide.”	The process is the punishment. Two men with clean records have already lost years and their livelihood.
“This is a favor to donors.”	The defendants are not major donors. The question is whether writing code is a crime.
“It undermines DOJ.”	Article II clemency is part of the constitutional design, not an intrusion on it.
“It signals crypto is above the law.”	It signals that toolmakers are not liable for users. Prosecute the users.
“Why bundle other names?”	One warrant, one news cycle, one principle. Bundling is optional and can be dropped late.
“What about Wasabi?”	Exactly the point. A near-identical provider was never charged. That is the definition of arbitrary.

DOCUMENT 13

Risk Register

Risk	Likelihood	Impact	Mitigation / Owner
Sustained hostile-media cycle	High	Low	Pre-booked surrogates within 12 hours. Comms.
Anonymous DOJ leaks	Med-high	Low	Deputy AG statement on independence. Government affairs.
Recipient post-pardon misstep	Low-med	High	Written 90-day low-profile assurance from each counsel. Coalition lead.
Victim-focused feature story	Medium	Medium	Compassionate, non-defensive response separating tool from misuse. Comms.
Bank-lobby quiet opposition	Medium	Low	Pair with a banking-friendly item the same week. Government affairs.
Perception of donor quid pro quo	Medium	High	Strict firewall; nothing in Doc 05 conditioned on the act. Counsel.
Timing slips past the window	Medium	Medium	Hard decision gate at Week 9. Principals.
State-level follow-on actions	Low	Medium	Pre-brief friendly state AGs; monitor NY, CA, MA. Legal.

DOCUMENT 14

Sources & Verification Log

This binder is only useful if it is accurate. What follows states plainly where each class of claim comes from.

Documented

- Charges, statutes, case number, and district: SDNY indictment, unsealed April 2024.
- Transaction-volume and illicit-proceeds figures: the government's own allegations, cited as allegations and not conceded as proven.
- *Van Loon v. Department of the Treasury* (5th Cir. 2024); *Bernstein v. DOJ* (9th Cir. 1999); *Junger v. Daley* (6th Cir. 2000); *United States v. Lanier* (1997); *Ex parte Garland* (1866); *Murphy v. Ford* (1975).
- FinCEN guidance, 2013 and 2019, on custodial versus non-custodial treatment.
- Stand With Crypto advocate counts and Fairshake fundraising: public reporting by those organizations.

Estimated

- All crypto-voter weightings in Document 04, Section 3.
- Combined social reach figures in Document 05, Section C.
- Current custody, extradition, and docket posture in Document 10 for 2025–2026.
- Libertarian-wing share of the electorate in Document 04, Section 1.

Open items for the next edition

- Verified docket pull with every filing date and current trial setting.
- Signed Tier 1 commitment letters, appended as an exhibit.
- A one-page family statement from each defendant's spouse, if they consent.
- District-level crypto-ownership data replacing the state-level estimates.

Prepared by the Free Samurai coalition. Corrections are welcome and will be incorporated into Edition III. This binder is a working draft; Document 06 is internal and should be removed before any external circulation.